

VETO OVERRIDDEN PASSED VETOED

BFA
12-20-96

TL14-002

To provide for the establishment of a Chickasaw Nation Criminal Code, and the conferring of jurisdiction for its enforcement by the BIA Law Enforcement Division and its adjudication and administration by the Court of Indian Offenses for the benefit of the citizens of the Chickasaw Nation.

IN THE CHICKASAW TRIBAL LEGISLATURE

The following bill was introduced by the Honorable Lisa Shephard, Chairman of the Tribal Justice Committee and Lisa Billy, Robert Walton, Dr. Judy Goforth Parker, Donna Hartman, Ron Parker and Tim Colbert, Members of the Committee.

A BILL

BE IT ENACTED by the Tribal Legislature of the Chickasaw Nation, assembled, this code of criminal laws and procedures, hereinafter referred to as the "Chickasaw Nation Criminal Code Act", and consisting of the following provisions which shall be properly codified into the "Code of the Chickasaw Nation", to wit:

Repeal SECTION 17-101 CFR COURT JURISDICTION, and re-number SECTION 17-102 JUVENILE DETENTION - INTERIM USE, as SECTION 17-101 JUVENILE DETENTION - INTERIM USE.

Amend Title 5 Courts and Procedures of the Code of the Chickasaw Nation, as follows:

1. Amend Chapter 3 as indicated;
1. Re-title Chapter 4 through Chapter 9 as stated in this Act; and
2. Add additional Chapters as indicated.

Chapter 3, Title 5, Code of the Chickasaw Nation shall be amended as follows:

4. to possess or sell fireworks between June 25 and July 10 inclusive of each year provided that a permit to do so has been obtained from the Chickasaw Nation or a lawfully authorized Chickasaw Nation's agency prior to such possession and sale; provided further that upon proof of a secure and safe facility, such permit may state a particular location for year round storage of fireworks by a business engaged in retail or wholesale of fireworks.

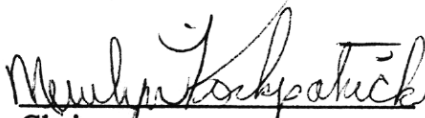
C. A Fireworks Offense shall be punishable by a fine not to exceed Two Hundred Fifty dollars (\$250.00), by a term of imprisonment not to exceed three months, or both.

SECTION 5-1506.33. ACCESSORY TO ANIMAL ATTACKS

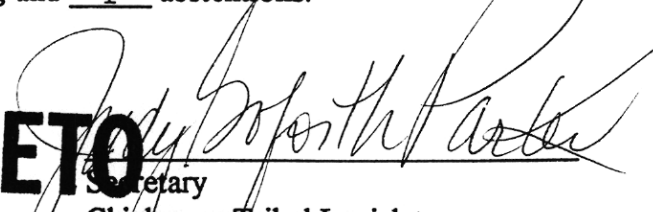
A. It shall be unlawful for any person(s) in custody, control or possession of (an) animal(s) to fail to adequately protect the public from actions of such animal(s) that result in hurting, injuring, maiming, or killing (a) person(s) or animal(s), or harming, marring, damaging, or destroying public or private property, real or personal.

B. Accessory to Animal Attacks shall be punishable by a fine of up to Five Thousand Dollars (\$5,000.00), or by imprisonment of up to one (1) year. The animal(s) determined to be involved in the attack(s) shall be confiscated to be tested for diseases that, if existing, would require other medical treatments. Once the health of the animal(s) is/are determined, such animal(s) shall, by order of the court, be either destroyed or otherwise disposed of as the interest of the victim and the court shall best be served. The guilty party shall also be responsible for all costs relating to the court action and all legal and medical fees of the victim(s). Conviction under this Section shall not pre-empt any civil cause of action brought by a victim(s) against the accused.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on December 20, 1996, by a vote of 12 ayes, 0 nays, and 1 abstentions.

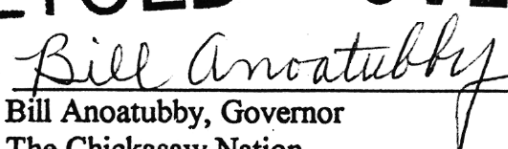

Chairperson
Chickasaw Tribal Legislature

VETO

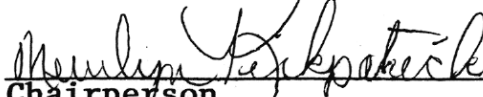

Secretary
Chickasaw Tribal Legislature

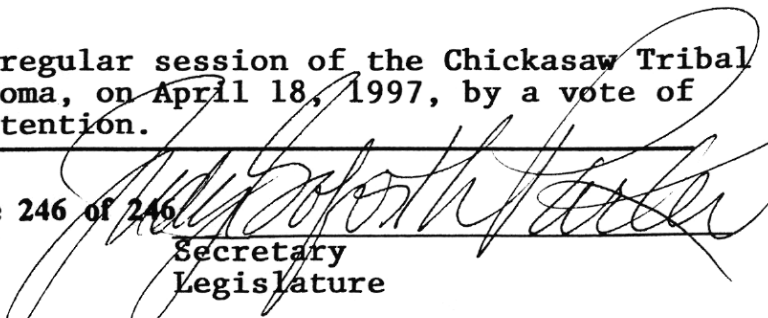
VETOED

OVERRIDDEN

Concur:  Date: 12-20-97
Bill Anoatubby, Governor
The Chickasaw Nation

Gubernatorial veto overridden in regular session of the Chickasaw Tribal Legislature meeting at Ada, Oklahoma, on April 18, 1997, by a vote of 12 ayes, 0 nays, and 1 abstention.


Chairperson
Chickasaw Tribal Legislature


Secretary
Legislature

T.L. 14-002

To provide for the establishment of a Chickasaw Nation Criminal Code, and the conferring of jurisdiction for its enforcement by the BIA Law Enforcement Division and its adjudication and administration by the Court of Indian Offenses for the benefit of the citizens of the Chickasaw Nation.

IN THE CHICKASAW TRIBAL LEGISLATURE

The following bill was introduced by the Honorable Lisa Shephard, Chairman of the Tribal Justice Committee and Lisa Billy, Robert Walton, Dr. Judy Goforth Parker, Donna Hartman, Ron Parker and Tim Colbert, Members of the Committee.

Explanation: Adoption of this Bill will provide policy and procedures for the enforcement and adjudication of the criminal laws of the Chickasaw Nation through the BIA Law Enforcement and the Court of Indian Offenses. It is the 14th Legislature version of Bill 13-003 that was tabled at the last Regular Legislative Session for the 13th Legislature on September 20, 1996.

Requested by: **The Tribal Justice Committee
Chickasaw Tribal Legislature**

Presented by: **Hon. Lisa Shephard, Chairman
Tribal Justice Committee**